



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 25, 2023

Re: CCRB Case No. 201907149 (Incident Date: August 9, 2019) involving Sergeant Tinina Luis, Tax No. 951487 (DADS No. 2021-23860) and Police Officer Kamrul Islam, Tax No. 954964 (DADS No. 2021-23855)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty settlement regarding the disciplinary matter involving Sergeant Tinina Luis and Police Officer Kamrul Islam. The Police Commissioner agrees with the findings of the CCRB regarding both Sergeant Luis' and Police Officer Islam's alleged misconduct. However, the Police Commissioner disagrees with the proposed penalties.

While responding to numerous community complaints about illegal gambling in the courtyard of a housing complex, Sergeant Luis and Police Officer Islam conducted an operation aimed at curbing such illegal activity. It was during this operation that Sergeant Luis and Police Officer Islam stopped several individuals who were suspected of engaging in illegal gambling. The stop was improper; thus, an imposition of a disciplinary penalty is warranted for both Sergeant Luis and Police Officer Islam. However, in the interests of progressive discipline, the disciplinary penalty assessed against both uniformed members of the service cannot be the issuance of Charges and Specifications.

Instead, the alleged misconduct committed by Sergeant Luis and Police Officer Islam did is best resolved with an imposition of a Command Discipline, as evidenced by the low-level penalty sought by the CCRB.

Therefore, the Police Commissioner intends to dismiss the Charges and Specifications for both members of the service in this matter and Sergeant Luis will be issued a Schedule "A" Command Discipline with the forfeiture of two (2) vacation days and Police Officer Islam will be issued a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days.

Sincerely,

A handwritten signature in black ink, appearing to read "L. S.P." or similar, with a horizontal line extending to the right.

Anthony Marino
Inspector
Commanding Officer
Police Commissioner's Office

cc: Matthew Schieffer, Esq.
Craig Hayes, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 31, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 201907149 (Incident Date: August 9, 2019) involving Sergeant Tina Luis, Tax No. 951487 (DADS No. 2021-23860) and Police Officer Kamrul Islam, Tax No. 954964 (DADS No. 2021-23855).

Dear Commissioner Caban:

I am writing in response to the letter from Inspector Anthony Marino, dated July 25, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in these matters. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Inspector Marino’s notification.

Inspector Marino stated that after reviewing the recommendation of the CCRB, you determined that the recommended penalties, a forfeiture of two (2) vacation days for Sergeant Luis and a forfeiture of three (3) vacation days for Police Officer Islam, was appropriate but did not require the imposition of charges & specifications against the two respondents.

At the time this plea was agreed to, the CCRB was not resolving APU cases for disciplines other than charges. Today, the CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If the CCRB were to resolve these cases today, and the respondents were to accept responsibility for the misconduct, the CCRB would have moved to dismiss the charges itself.

Respectfully submitted,

Jonathan Darche
Executive Director

NYC Civilian Complaint Review Board

Cc: Craig Hayes, Esq.
Matthew Schieffer, Esq.